

An Act

ENROLLED SENATE
BILL NO. 1597

By: Gollihare, Jett, Murdock,
Coleman, and Pederson of
the Senate

and

Moore of the House

An Act relating to the Oklahoma Children's Code; amending 10A O.S. 2021, Section 1-8-102, as amended by Section 1, Chapter 310, O.S.L. 2022 (10A O.S. Supp. 2025, Section 1-8-102), which relates to court-appointed special advocates; removing requirement for state association to adhere to certain national standards; updating statutory language; and providing an effective date.

SUBJECT: Court-appointed special advocates

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 10A O.S. 2021, Section 1-8-102, as amended by Section 1, Chapter 310, O.S.L. 2022 (10A O.S. Supp. 2025, Section 1-8-102), is amended to read as follows:

Section 1-8-102. A. Any court-appointed special advocate (CASA) available for appointment pursuant to the Oklahoma Children's Code or the Oklahoma Juvenile Code shall complete education and training courses in accordance with ~~national and~~ Oklahoma CASA standards.

B. No court-appointed special advocate shall be assigned a case before:

1. Completing a training program in compliance with ~~nationally documented Court-Appointed Special Advocate~~ court-appointed special advocate standards. Documentation of training shall be submitted annually by local court-appointed special advocate programs to the Oklahoma Court-Appointed Special Advocate Association; and

2. Being approved by the local court-appointed special advocate program, which ~~will~~ shall include appropriate criminal background checks as provided in subsection C of this section.

C. 1. Notwithstanding any other provision of law, each local court-appointed special advocate program shall require for any person making application to become a court-appointed special advocate volunteer or to be employed by the local court-appointed special advocate program:

- a. a child welfare records search conducted by the Department of Human Services, which shall consist of a search of the Child Abuse and Neglect Information System maintained by the Department of Human Services for review by authorized entities,
- b. a criminal history records search conducted by the Oklahoma State Bureau of Investigation, and
- c. any other background check meeting the requirements as set forth in Oklahoma Court-Appointed Special Advocate Association state ~~or national~~ standards for local programs.

2. If the prospective court-appointed special advocate volunteer or employee of the local court-appointed special advocate program has lived in ~~Oklahoma~~ this state for less than one (1) year, a criminal history records search shall also be obtained from the criminal history state repository of the previous state of residence.

D. 1. Any person participating in a judicial proceeding as a court-appointed special advocate shall be presumed prima facie to be acting in good faith and ~~in so doing~~ shall be immune from any civil liability that otherwise might be incurred or imposed.

2. Any person serving in a management position of a court-appointed special advocate organization, including a member of the Board of Directors acting in good faith, shall be immune from any civil liability or any vicarious liability for the negligence of any court-appointed special advocate organization advocates, managers, or directors.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 2nd day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____